

order of Mary L. Williams on or before three (3) years after date hereof; one note for the sum of six hundred and sixty six and 66/100 (\$666.66) dollars payable to the order of Lena T. Neely on or before three years after date hereof; and one note for the sum of six hundred and sixty six and 67/100 (\$666.67) payable to the order of John C. Tibbs payable on or before three (3) years after date; One note for the sum of two hundred (\$200.00) dollars payable to the order of Mary L. Williams on or before (4) years after date and one note for the sum of two hundred (200.00) dollars payable to Lena T. Neely on or before (4) years after date and one note for the sum of two (\$200.00) hundred dollars payable to the order of John C. Tibbs on or before four (4) years after date, and to secure the payment of which a lien is hereby expressly retained upon the property in favor of each of the above parties, holders of said notes, the parties of the first part have bargained and sold and do hereby grant and convey unto the parties of the second part and their heirs and assigns forever all that tract or parcel of land located in the County of Fayette and State of Kentucky on the East side of the Lexington and Maysville Turnpike just beyond the limits of the City of Lexington, and more particularly described as follows, to-wit:

Beginning at a point on the East side of the Maysville Turnpike in the North side of an alley fifteen (15) feet wide which leads off from the Maysville Turnpike in an Easterly direction said alley being in the rear of the lots fronting on the North side of Bluegrass alley and running thence with the line of said alley for a short distance and then leaving said alley South 43 13 E six hundred and thirty three and six tenths (633.6) feet; thence N 49 14 E. three hundred and twenty (320) feet; thence N 41 45 W thirty four (34) feet; thence N 47 51 E five hundred and forty eight (548) feet; thence N 55 12 W one hundred and eighty six and one-half (186.5) feet to the property of Berryman; thence S 47 30 W two hundred and forty six (246) feet; thence N 43 W four hundred and twenty two (422) feet to the Maysville Pike; thence along the line of the Maysville Pike S 47 30 W six hundred and seventeen (617) feet to the point of beginning and containing ten (10) acres and being a portion of the same property that was conveyed to the parties of the first part by R. J. Colbert, Master Commissioner of the Fayette Circuit Court in the equitable action of Mary L. Williams etc., Plaintiffs v John C. Tibbs and others by deed dated the 7th day of February 1925 and of record in the office of the clerk of the Fayette County Court in deed book 226 page 143, and reference is also made to a deed dated January 15th 1923, from Mary Donaldson and husband to the parties of the first part also of record in the office of the clerk of the Fayette County Court in deed book No. 229 page 140.

To Have and To Hold the said property unto the parties of the second part and their heirs and assigns forever and the parties of the first part for themselves, their heirs and assigns do hereby release unto the parties of the second part their heirs and assigns all the right, title and interest of them and each of them in and to said property including dower and homestead exemption and all other exemptions allowed by law also including curtesy interest and the parties of the first part for themselves, their heirs and assigns do hereby covenant to and with the parties of the second part and their heirs and assigns that they are seized in fee simple of said property with good and perfect right to sell and convey same as hereby done and that the title to said property is clear, perfect and unencumbered and that they will warrant generally the title to same. It is understood and agreed by and between the parties hereto that the parties of the second part have the right to pay off any of said indebtedness or any portion of same at any time that they deem fit and proper.

For return
see index B. 16- P 373-375

For return
see index B. 16
P 371

It is further understood and agreed by and between the parties hereto that in the event either of said notes or any portion of same or any installment of interest or any portion of same shall remain unpaid for a period of sixty (60) days after same is due then the parties of the first part or their assigns or any holder of either or any of said notes may declare each and all of said notes due and payable the same as if each had matured by virtue of its terms and proceed to enforce the collection of all of them.

It is further understood and agreed by and between the parties hereto that in the event the parties of the second part shall sub-divide the property herein described or sell same in parcels then the parties of the first part or their assigns including the Boyle Bank & Trust Company as Guardian of Esther Ophelia Tibbs will fully release the lien retained herein upon the portion or parcels so sold provided the parties of the second part shall pay to the holders of said notes an amount which will be equal to the proportionate part of the then outstanding lien debt and interest which the area of the portion to be released bears to the total area of the real estate herein described.

In Witness Whereof, the parties of the first part have hereunto set their hands by and through Chenault Huguely, their attorney in fact by and under authority of a certain power of attorney dated January 20, 1925 and of record in the office of the clerk of the Fayette County Court in deed book No. 229 page 141, on the day and year first above written.

(Stamps \$10.00)

Mary L. Williams
By Chenault Huguely
Attorney in fact.

Albert W. Williams
By Chenault Huguely
Attorney in fact

Lena T. Neely
By Chenault Huguely
Attorney in fact

John W. Neely
By Chenault Huguely
Attorney in fact

John C. Tibbs
By Chenault Huguely
Attorney in fact

Commonwealth of Kentucky,
County of Fayette:

I, George W. Vaughn, a Notary Public in and for the County and State aforesaid whose commission as such expires on the 29th day of January, 1928, do hereby certify that the foregoing instrument of writing from Mary L. Williams and Albert Williams, her husband, Lena T. Neely and John W. Neely, her husband and John C. Tibbs to P. D. Robinson and E. H. Reed, was on this day produced to me within the County and State aforesaid by Mary L. Williams and Albert Williams her husband, Lena T. Neely and John W. Neely, her husband and John C. Tibbs by and through Chenault Huguely, the Attorney in fact of each of the parties of the first part and thereupon the said Mary L. Williams and Albert Williams her husband, Lena T. Neely and John W. Neely, her husband and John C. Tibbs, by and through

Chenault Huguely the Attorney in fact of them and each of them, did acknowledge the said instrument to be the free act and voluntary deed of them and each of them and consented that same may be recorded and the said Chenault Huguely, Attorney in fact for Mary L. Williams and Albert Williams, her husband and Lena T. Neely and John W. Neely her husband and John C. Tibbs, did acknowledge the said instrument to be his free act and voluntary deed as Attorney in fact for the said Mary L. Williams and Albert Williams her husband, Lena T. Neely and John W. Neely, her husband and John C. Tibbs.

In Witness Whereof I have hereunto set my hand and affixed my Notarial Seal this the 7th day of February, 1925.

George W. Vaughn (Seal)

Notary Public Fayette Co. Ky.

I, Faust Foushee, Clerk of the County Court of Fayette County, in the State of Kentucky, do hereby certify that on this day the foregoing instrument of writing from Mary L. Williams et al to P. D. Robinson and E. H. Reed was produced to me in my office, duly stamped according to Act of Congress and ordered to record: Wherefore the same with certificate thereon endorsed and this my certificate has been duly recorded in my office.

Witness my hand this 9 day of February 1925.

Faust Foushee Clerk
By J O Barahan D O